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Subject: [External] AI Action Plan
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To policymakers and advisors at NITRD, NCO, NSF, and OSTP -

I am an independent musical artist in the composition, recording, and performance fields. I am also a music educator. My livelihood depends on my ability to compose, produce, and perform original musical works, i.e. create intellectual property to which I retain rights throughout my lifetime.

That intellectual property, if appropriated and incorporated into AI models, would be effectively stolen to train an algorithm to create similar works at a tiny fraction of the effort, cost, and time. The value of my original works would then necessarily diminish, as would the value of any further works I create in the future. That value would be unfairly transferred to large companies that own algorithms but not the content they trained on, as their AI can now replace my works with works generated from the bits of work they originally stole from myself and my fellow creators. My livelihood and my life's pursuits would be irreversibly damaged if not destroyed entirely.

AI policy must, therefore, protect and fairly compensate those who made generative AI models possible. Yes, this includes people who developed the algorithms and other technology necessary for it to function. But how can it not include those whose intellectual property form the basis for its training? If these creators are cut out of the deal then only the very few who developed the technology will stand to gain on the backs of the very many whose property that technology exploits without compensation.

As a concrete policy I suggest that AI algorithms be disallowed from training on or otherwise incorporating any intellectual property (a "work") currently under copyright protection, without obtaining the consent of its creator and any other applicable rights-holders. This consent should come with a guarantee and practical method of fair compensation for the use of the work in any AI-generated works at the time of generation, and royalties for any further display, performance, or other use of the work - including use of a derivative work in further training of AI algorithms. Admittedly this burden may be a large one, but it is necessary for technology developers to shoulder it. They are the ones that want to use and stand to gain from the intellectual property of others, so they must make it possible to do so in a fair way.

Furthermore, transparency is of great concern in this process. AI policy should require the ability to track how a creator's work was used, both in training a given algorithm and in generating derivative works. Without this transparency it will be all too easy for powerful players (i.e. AI algorithm owners and even large intellectual property rights-holders) to take advantage of those less powerful, who will almost certainly be independent creators.

In the current culture and market of music, to disseminate music that I create necessitates uploading my works to the internet via music streaming services, social media, and other platforms. I have done so many times with dozens of works that I created either alone or in

collaboration with my peers, and those have been streamed millions of times. My work has also been synched with other works such as television shows that are uploaded and streamed. I have no assurance that AI models have not already scraped and trained on my intellectual property. AI designers have a responsibility to account for and compensate intellectual property owners for what they have already taken without permission.

I have trained, studied, and practiced for years to be able to create art that is meaningful and beneficial to others. I dedicate my time, intellect, and other resources to creating the best art I can, and making it available and attractive to people for them to enjoy. My work is no less valuable than that of any other person who strives to contribute a good or service to others for use and consumption. I deserve to be fairly compensated just as they do. Please don't allow poor AI policy to ring the death-knell on the careers and livelihoods of human creators.

With hope,

Brandon Robert Kitterman

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